

Standing has been called one of "the most amorphous [concepts] in the entire domain of public law."<sup>18</sup> Some of the complexities peculiar to standing problems result because standing "serves, on occasion, as a shorthand expression for all the various elements of justiciability."<sup>19</sup> In addition, there are at work in the standing doctrine the many subtle pressures which tend to cause policy considerations to blend into constitutional limitations.<sup>20</sup>

Despite the complexities and uncertainties, some meaningful form can be given to the jurisdictional limitations placed on federal court power by the concept of standing. The fundamental aspect of standing is that it focuses on the party seeking to get his complaint before a federal court and not on the issues he wishes to have adjudicated. The "gist of the question of standing" is whether the party seeking relief has "alleged such a personal stake in the outcome of the controversy as to assure that concrete adverseness which sharpens the presentation of issues upon which the court so largely depends for illumination of difficult constitutional questions." *Baker v. Carr*, 369 U. S. 186, 204 (1962). In other words, when standing is placed in issue in a case, the question is whether the person whose standing is

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<sup>18</sup> Hearings on S. 2097, *supra*, n. 6, at 498 (statement of Prof. Paul A. Freund).

<sup>19</sup> Lewis, *Constitutional Rights and the Misuse of "Standing,"* 14 *Stan. L. Rev.* 433, 453 (1962).

<sup>20</sup> Thus, a general standing limitation imposed by federal courts is that a litigant will ordinarily not be permitted to assert the rights of absent third parties. See, e. g., *Heald v. District of Columbia*, 259 U. S. 114, 123 (1922); *Yazoo & Miss. Valley R. Co. v. Jackson Vinegar Co.*, 226 U. S. 217 (1912). However, this rule has not been imposed uniformly as a firm constitutional restriction on federal court jurisdiction. See, e. g., *Dombrowski v. Pfister*, 380 U. S. 479, 486-487 (1965); *Barrows v. Jackson*, 346 U. S. 249 (1953).